

MASTER SERVICES AGREEMENT

Agreement No.: MSA-2026-022

Counterparty: Vertex Retail Solutions Limited

Provider: Soft Suave Technologies Private Limited

Effective Date: 3 March 2026

Document Version: v1.0 (Original — no amendments)

Status: Executed

***Note for readers and retrieval systems:** this Agreement uses the same section numbering as MSA-2026-014 (Northwind) but contains **different commercial terms**. Section 8.3 of this Agreement is not the same as Section 8.3 of MSA-2026-014.*

This Master Services Agreement (the "**Agreement**") is entered into as of the Effective Date set out above by and between **Soft Suave Technologies Private Limited ("Provider")** and **Vertex Retail Solutions Limited**, a company incorporated under the laws of Singapore with its registered office at 1 Raffles Place, Singapore ("**Client**").

Section 1. Definitions

- 1.1 "Affiliate"** has the meaning given in Section 1.1 of the standard Provider terms: any entity controlling, controlled by, or under common control with a Party, where control means ownership of more than fifty percent (50%) of voting securities.
- 1.2 "Business Day"** means any day other than a Saturday, a Sunday, or a public holiday observed in **Singapore**. This Agreement does not incorporate a separate holiday calendar schedule.
- 1.3 "Confidential Information"** means all non-public information disclosed by one Party to the other that is designated as confidential or that a reasonable person would understand to be confidential.
- 1.4 "Cure Period"** means a period of **twenty (20) days** from the date a Party receives written notice of a material breach, within which that Party may remedy the breach.
- 1.5 "Deliverable"** means any work product, document, software, report, or other material that Provider is required to deliver to Client under a Statement of Work.
- 1.6 "Services"** means the services described in Schedule A to this Agreement.

Section 2. Scope of Services

- 2.1** Provider shall perform the Services described in Schedule A in accordance with the Service Levels set out in Schedule B to this Agreement.
- 2.2** In the event of a conflict between a Statement of Work and this Agreement, this Agreement prevails.

Section 3. Fees and Payment

3.1 Fees. Client shall pay Provider the fees set out in Schedule B to this Agreement. Fees are exclusive of applicable taxes.

3.2 Invoicing. Provider shall invoice Client monthly in arrears.

3.3 Payment Terms. Client shall pay each undisputed invoice within **sixty (60) days** of the invoice date.

3.4 Late Payment. Any undisputed amount not paid when due shall accrue interest at a rate of **one percent (1.0%) per month**, or the maximum rate permitted by applicable law, whichever is lower.

3.5 Disputed Amounts. Client may withhold payment of any amount it disputes in good faith, provided Client notifies Provider within ten (10) Business Days of the invoice date.

3.6 Fee Increases. Provider may increase fees by not more than **three percent (3%)** per annum on each anniversary of the Effective Date, on not less than ninety (90) days' prior written notice.

Section 5. Confidentiality

5.1 Each Party shall hold the other Party's Confidential Information in confidence and shall use a **reasonable degree of care** to prevent its unauthorised disclosure.

5.2 Neither Party shall disclose the other Party's Confidential Information except to employees, Affiliates, and professional advisers who have a need to know.

5.3 Survival. The obligations in this Section 5 shall survive the expiry or termination of this Agreement for a period of **three (3) years**.

Section 6. Intellectual Property

6.1 Each Party retains all right, title, and interest in its pre-existing intellectual property.

6.2 Subject to payment of all amounts due, Provider assigns to Client all right, title, and interest in the Deliverables, excluding Provider pre-existing intellectual property.

Section 7. Term and Termination

7.1 Term. This Agreement commences on the Effective Date and continues for an initial term of **three (3) years**, expiring on **2 March 2029**, unless terminated earlier.

7.2 Renewal. This Agreement renews automatically for successive periods of one (1) year unless either Party gives written notice of non-renewal not less than one hundred and twenty (120) days before the end of the then-current term.

7.3 Termination for Convenience. Either Party may terminate this Agreement for convenience by giving the other Party not less than **ninety (90) days'** prior written notice, provided that no such notice may be given during the first twenty-four (24) months of the initial term.

7.4 Termination for Cause. Either Party may terminate with immediate effect if the other Party commits a material breach and fails to remedy it within the Cure Period, becomes insolvent, or ceases to carry on business.

Section 8. Limitation of Liability

8.1 Exclusion of Indirect Loss. Neither Party shall be liable for any indirect, incidental, special, consequential, or punitive damages, or for loss of profits, revenue, business, or anticipated savings.

8.2 Direct Loss. Each Party is liable for direct losses arising from its breach, subject to the cap in Section 8.3.

8.3 Liability Cap. The aggregate liability of each Party under or in connection with this Agreement shall not exceed **five hundred thousand United States dollars (USD 500,000)** in aggregate over the life of this Agreement.

8.4 Exclusions from Cap. The limitations in Sections 8.1 and 8.3 do not apply to: (a) indemnity obligations under Section 9; (b) breach of Section 5; (c) fraud or wilful misconduct; or (d) Client's obligation to pay fees properly due.

Section 9. Indemnities

9.1 Provider shall indemnify Client against third-party claims that a Deliverable infringes third-party intellectual property rights, subject to prompt notice, sole control of defence, and reasonable assistance.

9.2 Client shall indemnify Provider against third-party claims arising from Client's unlawful use of the Deliverables.

Section 10. Data Protection

10.1 Each Party shall comply with applicable data protection laws, including the Singapore Personal Data Protection Act 2012.

10.2 Provider shall process Client personal data only in accordance with Client's documented instructions.

10.3 Breach Notification. Provider shall notify Client of any personal data breach within **forty-eight (48) hours** of becoming aware of it.

Section 11. Audit

11.1 Client may audit Provider's compliance **once per calendar year**, on not less than **thirty (30) days'** prior written notice.

Section 13. Insurance

13.1 Provider shall maintain professional indemnity insurance of not less than **USD 2,000,000** per claim and commercial general liability insurance of not less than **USD 5,000,000** per occurrence.

Section 14. Notices

14.1 Any notice shall be in writing and delivered by hand, by internationally recognised courier, or by electronic mail to the addresses set out in the signature block below.

14.2 A notice sent by courier is deemed received on the **third** Business Day after dispatch.

Section 15. Governing Law and Dispute Resolution

15.1 Governing Law. This Agreement shall be governed by and construed in accordance with the laws of Singapore.

15.2 Arbitration. Any dispute arising out of or in connection with this Agreement shall be referred to and finally resolved by **arbitration administered by the Singapore International Arbitration Centre (SIAC)** in accordance with its Rules in force at the time. The seat of arbitration shall be Singapore and the tribunal shall consist of one (1) arbitrator.

15.3 For the avoidance of doubt, this Agreement does **not** confer jurisdiction on any court in India.

Section 17. Non-Solicitation

17.1 During the term and for **six (6) months** thereafter, neither Party shall directly solicit for employment any employee of the other Party materially involved in the performance of this Agreement.

Section 20. Amendment

20.1 This Agreement may be amended only by a written instrument signed by both Parties. **As at the date of this document, no amendments to this Agreement have been executed.**

EXECUTED by the Parties on 3 March 2026.

For and on behalf of **Soft Suave Technologies Private Limited** Name: R. Anand — Title: Director Notice address: legal@softsuave.example, Chennai, Tamil Nadu, India

For and on behalf of **Vertex Retail Solutions Limited** Name: Daniel Lim — Title: Finance Director Notice address: contracts@vertexretail.example, 1 Raffles Place, Singapore